

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DANEE CATO AND JAHMARLEY JONES,

Plaintiffs,

-against-

CITY OF NEW YORK, ADAM GEORG, ROBERT
BRACERO, AND JOHN OR JANE DOES 1-10,

Defendants.

Index No.:

Purchased:

Plaintiffs designate

Queens County as the place of trial

The basis of the venue is where the
injury occurred

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
February 15, 2021



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TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

ADAM GEORG (NYPD Detective, Shield No. 4584 and Tax Id. 938548)
New York City Police Department
Gang Squad Queens South
1 Police Plaza Path
New York, New York 10038

ROBERT BRACERO (NYPD Lieutenant)
New York City Police Department
1 Police Plaza Path
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
DANEE CATO AND JAHMARLEY JONES,

Plaintiffs,

Index No.:

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-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, ADAM GEORG, ROBERT
BRACERO, AND JOHN OR JANE DOES 1-10,

Defendants.

-----X

Plaintiffs, DANEE CATO and JAHMARLEY JONES, by and through the undersigned attorneys, Sim & DePaola, LLP, for their complaint against the Defendants, CITY OF NEW YORK, ADAM GEORG, ROBERT BRACERO, and JOHN OR JANE DOES 1-10, individually and officially in their capacities as New York City detectives and lieutenants, alleges and states as follows:

1. This is a civil rights action, in which Plaintiffs seek relief, vis-à-vis 42 U.S.C. §§ 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of their civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.

2. Plaintiff Danee Cato's ("Plaintiff Cato") claims arose on January 26, 2015 when Defendants, acting under color of state law, unlawfully stopped, questioned, searched, arrested and detained Plaintiff Cato in the vicinity of the intersection of 137th Street and Springfield Boulevard in Queens, New York. Plaintiff was subsequently transported to the 113th NYPD Precinct, Queens

County Central Booking, Eastern Correctional Facility and Riker's Island Correctional Facility.

As a result, Plaintiff Cato was deprived of his liberty and suffered various physical, emotional and psychological injuries. Plaintiff Cato was wrongfully detained over the course of four (4) years and eight (8) months. In an Order dated July 31, 2019, the Appellate Division, Second Department reversed the criminal court conviction.

3. Plaintiff Danee was maliciously prosecuted and denied his right to fair trial until all criminal charges against Plaintiff Danee Cato on August 21, 2019 were dismissed, which constituted a termination of the criminal proceedings in Plaintiff Danee Cato's favor.

4. Plaintiff Jahmarley Jones' ("Plaintiff Jones") claims arose on June 11, 2015 when Defendants, acting under color of state law, unlawfully stopped, questioned, searched, arrested and detained him in the vicinity of 96-02 Rockaway Boulevard, in Queens, New York. Plaintiff Jones was subsequently transported to the 113rd NYPD precinct, Queens County Central Booking and later to the Riker's Island Correctional Facility. As a result, Plaintiff Jones was deprived of his liberty and suffered various physical, emotional and psychological injuries. Plaintiff Jones was wrongfully detained over the course of approximately four (4) years. In an Order dated February 15, 2018, the Appellate Division, Second Department reversed the criminal court conviction.

5. Plaintiff Jones was maliciously prosecuted and denied his right to fair trial until all criminal charges against Plaintiff Jones were dismissed on December 14, 2019, which constituted a termination of the criminal proceedings in Plaintiff Jones' favor.

6. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

7. Within 90 of the claims herein, Plaintiffs timely served notice of claims, upon the City of New York.

8. Over 30 days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.

9. Plaintiffs have complied with Defendant City's request for a hearing pursuant to G.M.L. 50-h or said request was untimely made.

10. This action and associated claims have been timely commenced within all applicable statutes of limitations.

11. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

12. Plaintiff Cato presently resides in Queens County, within the City and State of New York.

13. Plaintiff Jones resides in Queens County, within the City and State of New York.

14. At all relevant times herein, Defendant, City of New York ("City"), is a municipal corporation duly organized and existing under the laws of the State of New York.

15. At all relevant times herein, the New York City Police Department ("NYPD") was a wholly owned subsidiary that was further wholly operated, managed, maintained and controlled by Defendant City.

16. At all relevant times herein, Defendant City, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants,

lieutenants and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

17. At all relevant times herein, Defendant City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

18. At all relevant times herein, Defendant, ADAM GEORG (“GEORG”), a police officer, police supervisor or detective employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of Defendant City under Shield No. 4584 and Tax No. 938548. At all relevant times herein, Defendant GEORG was assigned to the Gang Squad Queens South, located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant GEORG is being sued in his individual and official capacities.

19. At all relevant times herein, ROBERT BRACO (“BRACO”), was, at all times here relevant, lieutenant employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of Defendant City. Plaintiff is not aware of Defendant BRACO’s Shield No. or Tax No. and, upon information and belief, such information is in the sole possession of Defendants. At all relevant times herein, Defendant BRACO was assigned to the New York City Police Department, located at 1 Police Plaza Path, New York, New York 10038. Defendant BRACO is being sued in his individual and official capacities.

20. At all relevant times, Defendants JOHN OR JANE DOES 1-10 were police officers, detectives, lieutenants, supervisors, policymakers or officials employed by the NYPD, or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants, JOHN OR JANE DOES 1-10, as such knowledge is within the exclusive possession of Defendants.

21. At all relevant times herein, Defendants JOHN OR JANE DOES 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants JOHN OR JANE DOES 1-10 are being sued in their individual and official capacities.

22. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES: PLAINTIFF CATO

19. On January 26, 2015 at approximately 7:00 P.M., Plaintiff was inside the vicinity of 137th Street and Springfield Boulevard, in Queens, New York.

20. While Plaintiff Cato was lawfully inside the aforesaid location, he was confronted and assaulted by Defendants, including GEORG, BRACERO, and JOHN OR JANE DOE 1-10 who entered with loaded firearms which they pointed at Plaintiff Cato despite the fact that Plaintiff Cato had no weapons and further presented no physical threat to themselves or any third parties.

21. Defendants, including GEORG, BRACERO, JOHN OR JANE DOE 1-10, without reasonable cause or justification, punched Plaintiff Cato in the eye causing him to lose consciousness.

22. At no time did Plaintiff Cato give Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 any reason or justification to commit the aforesaid violent acts.

23. At no time prior to Plaintiff Cato being punched did Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10, observe Plaintiff Cato committing a crime or violation of the law.

24. Plaintiff Cato was searched and seized in an unlawful manner by Defendants, including GEORG, BRACERO and other unidentified officers, JOHN OR JANE DOES 1-10, when they punched Plaintiff Cato in the eye without reasonable or probable cause or justification.

25. Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 had no probable cause or reasonable suspicion to arrest, detain or stop Plaintiff Cato, as he had not committed any crime or violation of the law.

26. Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 fabricated a false narrative, in which they claimed Plaintiff Mr. Cato committed criminal acts including, *inter alia*, engaging in a conspiracy to commit murder, when they knew such claims to be untrue and complete fabrications.

27. Plaintiff Mr. Cato had multiple assaults and batteries committed to his person including but not limited to being punched, kicked and being placed in handcuffs which were too tight which necessitated him being hospitalized.

28. Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 suppressed evidence and engaged in conduct undertaken in bad faith, namely fabricating false accounts that Plaintiff Mr. Cato committed the aforesaid criminal acts.

29. Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 denied Mr. Cato his right to a fair trial by submitting erroneous and patently false information in front of the trial jury including purported experts who provided undue, improper and inappropriate testimony and who were never subjected to cross examination.

30. Because of said undue, improper and inappropriate testimony produced in violation of Plaintiff Cato's federal civil rights, the trial jury was misled and Plaintiff Cato was convicted.

31. During all of the events described, the Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 acted maliciously and with intent to injure Plaintiff Mr. Cato.

32. At all times relevant hereto, Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants observed others doing so, all in furtherance of Plaintiff Mr. Cato being seriously injured.

33. As a direct and proximate result of the acts of Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10, Plaintiff Mr. Cato suffered the following injuries and damages: violations of his rights pursuant to the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

34. As a direct and proximate result of this unlawful conduct, Plaintiff Mr. Cato sustained the damages hereinbefore alleged.

23. In an Order dated July 31, 2019, the Appellate Division, Second Department reversed the criminal court conviction and remanded the matter in order to give Plaintiff Cato a fair trial in a manner which did not violate his federal and New York State Civil Rights.

24. On August 21, 2019, all charges against Plaintiff Cato were dismissed, which constituted a termination of the criminal proceedings in favor of the accused.

FACTUAL CHARGES: PLAINTIFF JONES

35. On, or about, June 11, 2015, at approximately 1:00 P.M., in the vicinity of the 96-02 Rockaway Boulevard, in Queens, New York, Plaintiff Jones was lawfully present when

Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 illegally stopped him.

36. Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10, unlawfully questioned Plaintiff Cato regarding illegal activity, despite possessing no valid reason to inquire, as no criminal activity was present or even reasonably suspected.

37. Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10, physically restrained and removed Plaintiff Jones from the scene by rear handcuffing him in an excessively tight fashion, which caused substantial pain and physical discomfort to Plaintiff Mr. Jones' wrists.

38. Defendants, including GEORG, BRANCERO and JOHN OR JANE DOES 1-10, unlawfully stopped Plaintiff Mr. Jones without his consent, a judicially authorized search warrant or any other legal authority to do so.

39. Defendants, including GEORG, BRANCERO and JOHN OR JANE DOES 1-10, then fabricated the observations to justify their illegal search and seizure of Plaintiff Mr. Jones, including, *inter alia*, that he was part of a criminal conspiracy to commit murder.

40. Defendants, including GEORG, BRANCERO and JOHN OR JANE DOES 1-10, then forcibly removed Plaintiff Jones to the 113rd precinct by grabbing his person and shoving him into a police transport vehicle.

41. Defendants, including GEORG, BRANCERO and JOHN OR JANE DOES 1-10, criminally processed Plaintiff Jones, which included fingerprinting, retina scans and various invasive bodily searches.

42. Defendants, including GEORG, BRANCERO and JOHN OR JANE DOES 1-10, forwarded fabricated evidence to prosecutors.

43. Defendants, including JOHN OR JANE DOES 1-10, proceeded to suppress exculpatory evidence from prosecutors, so that Plaintiff Jones would be criminally prosecuted.

44. Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 denied Mr. Jones his right to a fair trial by submitting erroneous and patently false information in front of the trial jury including purported experts who provided undue, improper and inappropriate testimony and who were never subjected to cross examination.

45. Because of said undue, improper and inappropriate testimony produced in violation of Plaintiff Cato's federal civil rights, the trial jury was misled, and Plaintiff Jones was convicted.

46. During all of the events described, the Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 acted maliciously and with intent to injure Plaintiff Mr. Jones.

47. At all times relevant hereto, Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10 engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants observed others doing so, all in furtherance of Plaintiff Jones being seriously injured.

48. As a direct and proximate result of the acts of Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10, Plaintiff Cato suffered the following injuries and damages: violations of his rights pursuant to the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

49. As a direct and proximate result of this unlawful conduct, Plaintiff Cato sustained the damages hereinbefore alleged.

25. In an Order dated February 15, 2018, the Appellate Division, Second Department reversed the criminal court conviction and remanded the matter in order to give Plaintiff Cato a fair trial in a manner which did not violate his federal and New York State Civil Rights.

50. On December 4, 2019, all charges against Plaintiff Jones were dismissed, which constituted a termination of the criminal proceedings in favor of the accused.

51. Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10, arrested and attempted cause a criminal prosecution to be initiated against Plaintiffs, because of their desires to use Plaintiffs' arrests to incur additional overtime compensation, benefits and favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

52. Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiffs by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

53. Plaintiffs assert that the Defendants, including GEORG, BRACERO and JOHN OR JANE DOES 1-10, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious

wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers, detectives and lieutenants.

54. The individually named Defendants herein, as well as other officers, detectives and lieutenants serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

26. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled “Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn’t Involved,” describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

27. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

28. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a

disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

29. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

30. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

31. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

32. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

33. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly

incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

34. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause.

35. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

36. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

37. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

38. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

39. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, MOULIER, CARLO, HERNANDEZ, ARIAS, and JOHN OR JANE DOE 1-10.

40. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

41. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

42. The aforementioned acts of Defendants, including MOULIER, CARLO, HERNANDEZ, ARIAS, and JOHN OR JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

43. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Protected Speech or Activity Retaliation Claim Under
New York State Law

44. The above paragraphs are here incorporated by reference as though fully set forth herein.

45. Plaintiffs engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.

46. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

47. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of his liberty and the initiation of criminal charges against him.

48. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities or by chilling their desire to further participate or engage in such protected speech or activities.

49. Accordingly, Plaintiffs' right to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the New York State Constitution, were violated by Defendants.

50. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

51. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

52. The above paragraphs are here incorporated by reference as though fully set forth herein.

53. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

54. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

55. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of his liberty and the initiation of criminal charges against him.

56. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities, or by chilling their desire to further participate or engage in such protected speech or activities.

57. Accordingly, Plaintiffs' right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

58. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

59. The above paragraphs are here incorporated by reference as though fully set forth herein.

60. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

61. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to his person and property.

62. Plaintiffs did not consent to the unreasonable searches and seizures to their person or property.

63. The unreasonable searches and seizures to Plaintiffs' person and property were not otherwise privileged.

64. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

65. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

66. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION
Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

67. The above paragraphs are here incorporated by reference as though fully set forth herein.

68. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

69. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

70. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

71. The unreasonable searches and seizures to Plaintiffs' persons and property were not otherwise privileged.

72. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

73. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest and False Imprisonment Under New York State Law

74. The above paragraphs are here incorporated by reference as though fully set forth herein.

75. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

76. Plaintiffs were conscious of their confinement.

77. Plaintiffs did not consent to their confinement.

78. Plaintiffs' arrests and false imprisonment were not otherwise privileged.

79. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

80. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

81. The above paragraphs are here incorporated by reference as though fully set forth herein.
82. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
83. The wrongful, unjustifiable, and unlawful apprehensions, arrests, detentions, and imprisonment of Plaintiffs were carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
84. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
85. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

86. The above paragraphs are here incorporated by reference as though fully set forth herein.
87. At all relevant times, Defendants caused Plaintiffs to fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.
88. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without consent or justification.
89. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.
90. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
91. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

92. The above paragraphs are here incorporated by reference as though fully set forth herein.

93. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

94. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without consent.

95. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

96. The above paragraphs are here incorporated by reference as though fully set forth herein.

97. Defendants initiated the prosecution against Plaintiffs.

98. Defendants lacked probable cause to believe Plaintiff were guilty or that the prosecutions could succeed.

99. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

100. The prosecutions were terminated in Plaintiffs' favor, when all criminal charges were unconditionally dismissed and sealed.

101. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered significant damages.

102. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

104. The above paragraphs are here incorporated by reference as though fully set forth herein.
105. Defendants initiated the prosecutions against Plaintiffs.
106. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions would succeed.
107. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
108. The prosecution was terminated in Plaintiffs' favor, when all criminal charges were unconditionally dismissed and sealed.
109. Accordingly, Defendants violated Plaintiffs' Fourth and Fourteenth Amendment rights.
110. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

111. The above paragraphs are here incorporated by reference as though fully set forth herein.
112. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.
113. Defendants had no excuse or justification to forcibly detain or initiate prosecutions against Plaintiffs, especially with the absence of any cognizable probable cause.
114. Defendants intended to inflict substantial harm upon Plaintiffs.
115. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions.
116. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

118. The above paragraphs are here incorporated by reference as though fully set forth herein.

119. Defendants arrested, detained and caused criminal prosecutions to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.

120. Defendants had no excuse or justification to forcibly detain and initiate prosecutions against Plaintiffs, especially with the absence of any cognizable probable cause.

121. Defendants intended to inflict substantial harm upon Plaintiffs.

122. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions.

123. Defendants' actions deprived Plaintiffs of their constitutional rights to free from illegal searches and seizures and to not be deprived of liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

124. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

125. The above paragraphs are here incorporated by reference as though fully set forth herein.

126. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

127. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

128. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

129. Accordingly, Defendants deprived Plaintiffs of civil rights, pursuant to Article I, Sections 1, 2, 6 & 9, of the New York State Constitution, as well Article II, Sections 10 & 12, of the New York Civil Rights Law.

130. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

131. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

132. The above paragraphs are here incorporated by reference as though fully set forth herein.

133. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

134. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

135. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiffs' liberty and freedom of movement.

136. Accordingly, Defendants violated Plaintiffs' right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to United States Constitution.

137. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTIONBiased Based Profiling under
New York City Law

138. The above paragraphs are here incorporated by reference as though fully set forth herein.

139. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiffs rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

140. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the Administrative Code of the City of New York, Section 14-151.

141. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

142. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTIONDeprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

143. The above paragraphs are here incorporated by reference as though fully set forth herein.

144. Plaintiffs, as Black or African American males, are members of a racial minority and protected class.

145. Defendants discriminated against Plaintiffs on the basis of, *inter alia*, their race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

146. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

147. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

148. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

149. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

150. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

151. Accordingly, Defendants violated Plaintiffs' rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, Paragraph 13, of the New York Human Rights Law.

152. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

154. The above paragraphs are here incorporated by reference as though fully set forth herein.

155. Plaintiffs, as Black or African American males, are a members of a racial minority and protected class.

156. Defendants discriminated against Plaintiff on the basis of their race, color, or ethnicity.

157. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.

158. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such

as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

159. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

160. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

161. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

162. Accordingly, Defendants violated Plaintiffs' rights, under the Fourteenth Amendment.

163. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

164. The above paragraphs are here incorporated by reference as though fully set forth herein.

165. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of their liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

166. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

167. As a result, Plaintiffs sustained injuries to his person, was deprived of their liberty or was deprived of rights or privileges of citizens of the United States.

168. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

169. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

170. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

171. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

172. The above paragraphs are here incorporated by reference as though fully set forth herein.

173. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

174. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

175. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

176. The above paragraphs are here incorporated by reference as though fully set forth herein.

177. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

178. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

179. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Due Process/Fabrication of Evidence Claim Under
42 U.S.C. § 1983 Against Individual Defendants

180. The above paragraphs are here incorporated by reference as though fully set forth herein.

181. Those Defendants deliberately fabricated evidence against the Plaintiffs and that as a result of this evidence being used against him, he was deprived of his constitutional right without due process of law.

182. As a result, Plaintiffs sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

183. The Defendants fabricated evidence in order to support their false arrests, detentions, and prosecutions of the Plaintiffs. The Defendants used this fabricated evidence and informed the prosecution that the fabricated evidence was true and accurate despite the fact that knew that the fabricated evidence was not true. As a result, Plaintiffs was deprived of their constitutional rights.

184. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

185. The above paragraphs are here incorporated by reference as though fully set forth.

186. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.

187. Defendant City breached those duties of care.

188. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

189. Defendant City knew or reasonably should have known of its employees' propensity for committing civil rights violations.

190. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiffs.

191. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

192. The above paragraphs are here incorporated by reference as though fully set forth.

193. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

194. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

195. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

196. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiffs' Constitutional rights that the need for enhanced training or supervision is obvious and

equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

197. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

198. Defendant City's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

199. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- y) Awarding Plaintiff reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
February 15, 2021

SIM & DEPAOLA, LLP

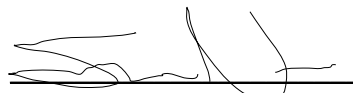
A handwritten signature in blue ink, appearing to read 'Sameer Nath', is written over a horizontal line.

By: Sameer Nath, Esq.
Attorneys for Plaintiff
42-40 Bell Blvd - Ste 201
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, Sameer Nath, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
February 15, 2021



Sameer Nath, Esq.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

DANEE CATO AND JAHMARLEY JONES,

Plaintiffs,

-against-

CITY OF NEW YORK, ADAM GEORG, ROBERT BRACERO, AND JOHN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Sameer Nath, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard

Suite 201

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for